

**ENTITLED: “AN ORDINANCE PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENTS, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3 OFFICIAL ZONING MAP, OF THE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM COUNTY A-1 AGRICULTURAL AND RURAL RESIDENTIAL TO MR-2 MEDIUM DENSITY RESIDENTIAL-DEVELOPING FOR A PORTION OF THE E½ OF SECTION 25, T.14N., R.66W., 6<sup>TH</sup> P.M., CHEYENNE, WYOMING, TO BE KNOWN AS SADDLE RIDGE, 8<sup>TH</sup> FILING (LOCATED NORTH OF AND ADJACENT TO E. PERSHING BOULEVARD, WEST OF CHRISTENSEN ROAD).”**

**BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:**

Section 1. That the owner of the property described herein, has applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on August 3, 2015, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as a portion of the E½ of Section 25, T.14N., R.66W., 6<sup>th</sup> P.M., Cheyenne, Wyoming, to be known as Saddle Ridge, 8<sup>th</sup> Filing, is hereby changed to MR-2 Medium Density Residential-Developing (See attached Exhibit A).

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

**FIRST READING:** \_\_\_\_\_

**SECOND READING:** \_\_\_\_\_

**3RD AND FINAL READING:** \_\_\_\_\_

\_\_\_\_\_  
RICHARD L. KAYSEN, MAYOR

(SEAL)  
ATTEST:

\_\_\_\_\_  
CAROL INTLEKOFER, CITY CLERK

publish date: \_\_\_\_\_

## STAFF REPORT - SUMMATION

### **Saddle Ridge, 8<sup>th</sup> Filing** Zone District Map Amendment Process

**CASE NUMBER(s):** UDC-15-00423

**SUBDIVISION CODE:** SDRA

**PREPARED BY:** Josh Tetzlaff

**MEETING DATES:** August 3, 2015 – Planning Commission  
August 10, 2015 – City Council

**REQUIRED DOCUMENTS SUBMISSION:** The following required documents have been submitted and reviewed by staff.

- Complete Application
- Zone Change Map

**RECOMMENDATION:** The Planning and Development Office recommends approval of the zone change request from County A-1 Agricultural and Rural Residential to MR-2 Medium Density Residential-Developing for the area to be known as Saddle Ridge, 8<sup>th</sup> Filing with the following condition:

- 1) Submit a map with the Development Department's technical comments addressed.

**PLANNING COMMISSION UPDATE (8/3/15):** At its regular meeting on August 3, 2015, the Planning Commission voted to approve the zone change request with the following condition:

- 1) Submit a map with the Development Department's technical comments addressed.

**CITY COUNCIL RECOMMENDATION:** The Planning and Development Office recommends approval of the zone change request from County A-1 Agricultural and Rural Residential to MR-2 Medium Density Residential-Developing for the area to be known as Saddle Ridge, 8<sup>th</sup> Filing with the following condition:

- 1) Submit a map with the Development Department's technical comments addressed.

## STAFF REPORT

### **Saddle Ridge, 8<sup>th</sup> Filing** Zone District Map Amendment Process

**CASE NUMBER(s):** UDC-15-00423  
**PREPARED BY:** Josh Tetzlaff  
**MEETING DATES:** August 3, 2015 – Planning Commission  
August 10, 2015 – City Council

**SUBDIVISION CODE:** SDRA

**OWNER:** William J. Edwards 307.634.8400  
WJE, LLC  
506 Shoshoni Street  
Cheyenne, WY 82009  
**AGENT:** John Edwards 307.634.8800  
Edwards Development, LLC  
506 Shoshoni Street  
Cheyenne, WY 82009

**PROJECT:** Saddle Ridge, 8<sup>th</sup> Filing Zone Change

**WORK DESCRIPTIONS:** Change from County A-1 Agricultural and Rural Residential to MR-2 Medium Density Residential-Developing

**LOCATION:**

1. Legal Description: A portion of the E½ of Section 25, T.14N., R.66W., 6<sup>th</sup> P.M., Cheyenne, Wyoming
2. Location: North of and adjacent to E. Pershing Boulevard, west of Christensen Road
3. Address: N/A

**SIZE:** Total site: 65.25 acres

**CURRENT ZONING:** County A-1 Agricultural and Rural Residential

**PROPOSED ZONING:** MR-2 Medium Density Residential-Developing

**EXISTING LAND USE:** Undeveloped

**PROPOSED LAND USE:** Single Family Residential

**SURROUNDING LAND USES:**

| SURROUNDING | LAND USE(s)                    | ZONING | ANNEXATION STATUS |
|-------------|--------------------------------|--------|-------------------|
| North       | Low Density Residential/Public | A-1    | County            |
| South       | Low Density Residential        | AR     | County            |
| East        | Undeveloped                    | A-2    | County            |
| West        | Single Family Residential      | MR-2   | City              |

## **EXECUTIVE SUMMARY:**

This zone change application is from County A-1 Agricultural and Rural Residential to MR-2 Medium Density Residential-Developing. This application was submitted in conjunction with an annexation application due to the requirement of changing the zone to a City zone prior to development. A final plat application will be required to come before you prior to construction.

PlanCheyenne is supportive of this zone district. With a land use designation of Urban Residential, MR-2 is a zone district that is compatible with the goals for this area. MR-2, as a zone district, is designed for a wide variety of housing types and densities. Urban Residential also intends for there to be complimentary uses integrated into neighborhoods. With this project, it is near an existing school and a proposed school to the west. It also has an extension of the Greenway through the project.

***Due to meeting the review criteria of Section 2.1.2.d of the Cheyenne Unified Development Code (UDC), staff recommends approval of the zone change, advancing it to the Governing Body, with the following condition:***

- 1) Submit a map with the Development Department's technical comments addressed.***

**ZONE CHANGE DATA:** In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following criteria:

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**PLANCHEYENNE** - The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

PlanCheyenne recommends a Future Land Use Category of Urban Residential, which encourages a wide variety of housing types with complementary uses interspersed throughout. The complementary uses include an existing elementary school to the east and a proposed school to the west as well as parks/trails through the neighborhood. Urban Residential should also be located within the Urban Service Boundary, which this parcel is in its entirety.

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**SURROUNDING AREA** - The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

The application is consistent with the uses recommended in PlanCheyenne. The single family residential development is similar to the residential development immediately to the west and is compatible with the MR-2 zone district that is present. It is also compatible with the comprehensive plan, which calls for urban residential type development in much of the surrounding area.

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**ZONING: BASIC STANDARDS & USES** - The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district;

With the parcel also being annexed, it currently has a County zone district. Per code, a property must have a City zone district before it can be developed within the City. Because of this, the current zone is not suitable for development within the City. The proposed zone district of MR-2 Medium Density Residential-Developing is much more suitable to development, not only because it is a City zone but also because MR-2 is the residential zone that allows the types and densities of housing proposed.

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**STREETS & OPEN SPACE** - The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning;

The parcel for this zone change should be able to meet the standards found in Article 4. The transportation network meets the standards for lots and blocks or is able to meet exceptions described within the UDC. For this project, open space is being approached on a regional perspective as described within the preliminary plat for Saddle Ridge, 8<sup>th</sup> & 9<sup>th</sup> Filings. The specific standards from Article 4 are reviewed in depth during the platting process.

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**ZONING: INTENT, APPLICABILITY & DESIGN OBJECTIVES** - The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

The MR-2 district is intended for a mix of density and dwelling types and is applicable where urban residential development patterns are desired. The application is able to meet the intent and applicability of the MR-2 district. For single family residential development, there are not any design standards regarding landscaping and building materials and form.

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**ZONING: FUTURE DEVELOPMENT** - The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

A final plat application will be following this zone change. If this development falls through, the parcel will be able to sold and developed as residential lots and should not be hindered from future development.

**Reviewing Agencies w/ Comments:**

- Development Department (Josh Tetzlaff) **(Correct Prior to Approval)**
  - o Donated Lots: Parks & Rec has stated they are not interested in accepting all of these lots for ownership and future maintenance. Please reword the donation statements to donate the lots to the "City of Cheyenne."
  - o Customarily, legals within title blocks have read "E1/2" instead of "East Half." Please revise your language within the title block to reflect this.
  - o Due to the plat not being completed concurrently, an exhibit map will need to be attached to the ordinance. Please provide the City with an updated map addressing any comments from reviewing agencies.

**Reviewing Agencies w/o Comments:**

- City Engineer (Nathan Beauheim)
- Development Department (Brandon Cammarata)
- Engineering Department – General (Nathan Beauheim)
- Metro Planning Office (Nancy Olson)
- Urban Planning (Matt Ashby)

**Reviewing Agencies not Responding:**

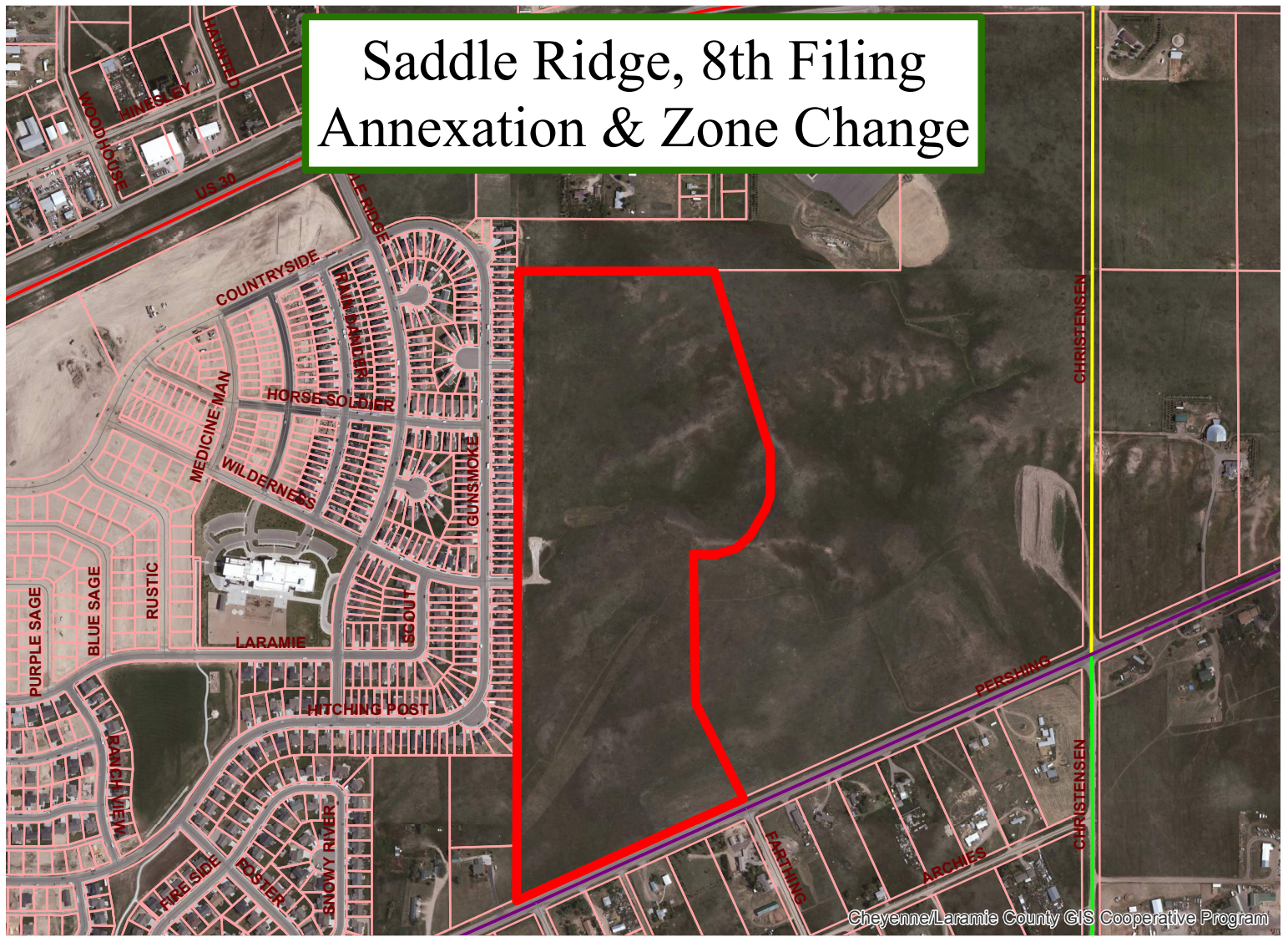
- None

**Other Comments Received:**

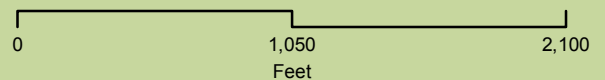
- None

cc: Owner  
Agent/Applicant  
File

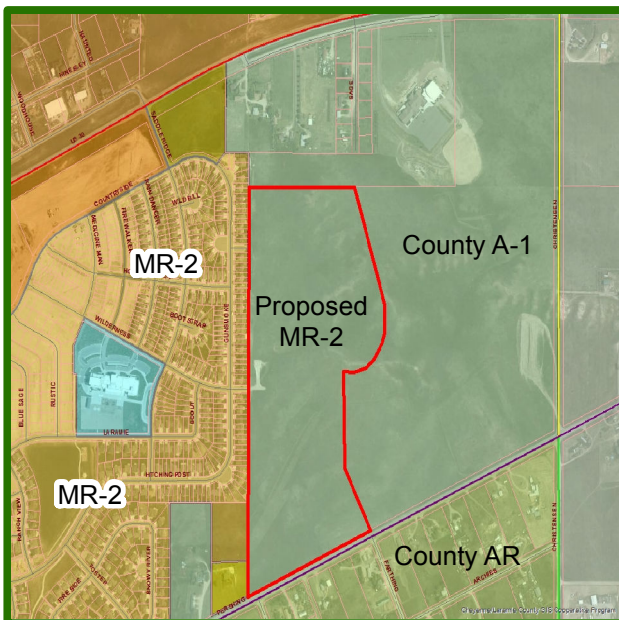
# Saddle Ridge, 8th Filing Annexation & Zone Change



Applicant: WJE, LLC  
Agent: John Edwards, Edwards Development, LLC  
Application Numbers  
Annexation: UDC-15-00422  
Zone Change: UDC-15-00423



## Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

## Annexation

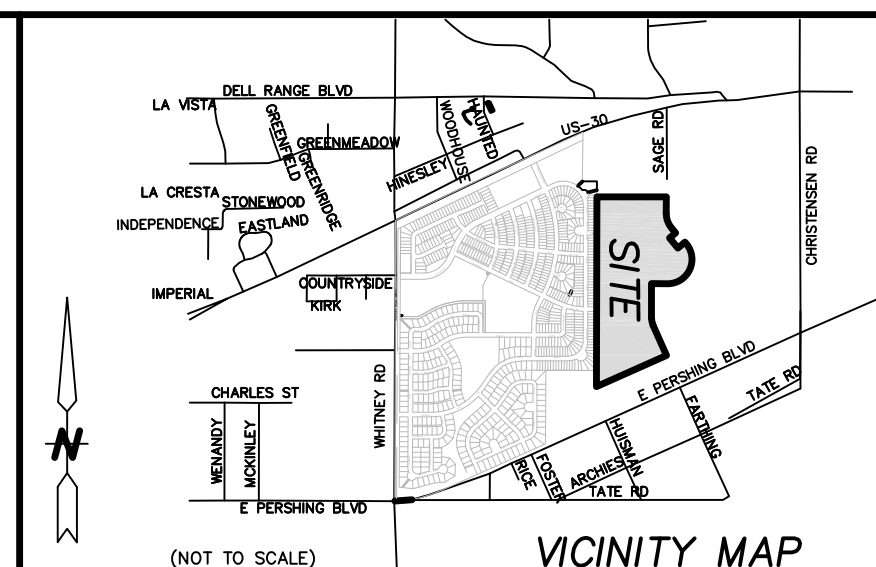


## DESIGN FIRM

EDWARDS DEVELOPMENT, LLC  
506 SHOSHONI  
CHEYENNE, WY 82009  
307-634-8800

## A-1

CHEYENNE HILLS CHURCH  
7505 US HWY 30



*SADDLE RIDGE ADJACENT LOT OWNER*

[illegible]

A portion of the East Half (E½) of Section 25, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, more particularly described as follows:

beginning at the southwest corner of Cheyenne Hills Church Subdivision, from which the North Quarter corner of Section 25 bears 00° 09' 47", a distance of 1355.70 feet; thence 90° 01' 49", along the south line of Cheyenne Hills Church Subdivision, a distance of 1054.70 feet; thence 180° 07' 26", a distance of 249.40 feet to the beginning of a curve to the left; thence 254.78 feet along said curve, through an angle of 41° 37' 46", having a radius of 350.66 feet, and whose long chord bears 159° 18' 33", a distance of 249.21 feet; thence 140° 11' 48", a distance of 83.88 feet; thence 230° 11' 48", a distance of 120.00 feet; thence 140° 11' 48", a distance of 200.00 feet; thence 50° 11' 48", a distance of 140.00 feet; thence 140° 11' 48", a distance of 32.43 feet to the beginning of a curve to the right; thence 839.13 feet along said curve, through an angle of 129° 56' 34", having a radius of 370.00 feet, and whose long chord bears 205° 10' 05", a distance of 670.51 feet; thence 270° 08' 22", a distance of 245.13 feet; thence 180° 08' 22", a distance of 60.00 feet; thence 178° 59' 37", a distance of 100.02 feet; thence 180° 08' 22", a distance of 360.61 feet to the beginning of a curve to the left; thence 118.30 feet along said curve, through an angle of 23° 46' 22", having a radius of 285.11 feet, and whose long chord bears 168° 01' 58", a distance of 117.45 feet; thence 155° 55' 35", a distance of 498.74 feet to the north line of Pershing Boulevard; thence 245° 55' 27", along said line, a distance of 1166.85 feet to the west line of the E½ of Section 25; thence 00° 08' 22", along said line, a distance of 2886.45 feet to the point of beginning. Containing 65.26 acres more or less.

- 1.) IT IS THE INTENT OF THIS RE-PLAT TO VACATE OFFICIAL MAP ADOPTED BY THE GOVERNING BODY OF CHEYENNE, WYOMING BY ORDINANCE NO.39222 RECORDED BOOK2227, PAGE 996-1001 WITHIN THE BOUNDARY OF THIS PLAT.
- 2.) IT IS THE INTENT OF THIS RE-PLAT TO VACATE ALL UTILITY AND DRAINAGE EASEMENTS CONTAINED WITHIN THIS BOUNDARY OF THIS PLAT.

- 1.) BASIS OF AZIMUTH — CITY OF CHEYENNE DATUM REFERENCED FROM CITY CONTROL MONUMENTS "MICRO" AND "PERSHING".
- 2.) THIS PROPOSED PLAT DOES NOT FALL WITHIN ANY FEMA 100 YEAR FLOOD PLAIN ACCORDING TO F.E.M.A. MAP PANEL NO. 56021C1114F DATED JANUARY 17, 2007.
- 3.) WATER AND SEWER TO BE PROVIDED BY CITY OF CHEYENNE BOPU.
- 4.) ALL UTILITIES TO BE PROVIDED ADJACENT TO PARCEL
- 5.) NEAREST FIRE HYDRANT AT NORTHEAST CORNER OF EXISTING WILDERNESS TRAIL ALONG WEST BOUNDARY LINE.

- 1.) LOT 1, BLOCK 1 TO BE DONATED TO THE CITY OF CHEYENNE PARKS AND RECREATION DEPARTMENT FOR GREENWAY PATHWAY AND PUBLIC USE.
- 2.) LOT 12, BLOCK 1 TO BE DONATED TO THE CITY OF CHEYENNE PARKS AND RECREATION DEPARTMENT FOR GREENWAY PATHWAY AND PUBLIC USE.
- 3.) LOT 12, BLOCK 6 TO BE DONATED TO THE CITY OF CHEYENNE PARKS AND RECREATION DEPARTMENT FOR GREENWAY PATHWAY AND PUBLIC USE.
- 4.) LOT 17, BLOCK 7 TO BE DONATED TO THE CITY OF CHEYENNE PARKS AND RECREATION DEPARTMENT FOR GREENWAY PATHWAY AND PUBLIC USE.
- 5.) LOT 15, BLOCK 8 TO BE DONATED TO THE CITY OF CHEYENNE PARKS AND RECREATION DEPARTMENT FOR GREENWAY PATHWAY AND PUBLIC USE.
- 6.) LOT 13, BLOCK 9 TO BE DONATED TO THE CITY OF CHEYENNE PARKS AND RECREATION DEPARTMENT FOR GREENWAY PATHWAY AND PUBLIC USE.

A PORTION OF THE EAST HALF OF  
SECTION 25, T.14N., R.66W., OF THE 6TH P.M.,  
LARAMIE COUNTY, WYOMING.

PREPARED June 15

**STEIL SURVEYING SERVICES, LLC**  
PROFESSIONAL LAND SURVEYORS

1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7275  
756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 322-9789  
www.StealSurvey.com • info@StealSurvey.com

| CURVE TABLE |              |         |               |              |            |
|-------------|--------------|---------|---------------|--------------|------------|
| CURVE #     | DELTA        | RADIUS  | CHORD AZIMUTH | CHORD LENGTH | ARC LENGTH |
| C285        | 129° 56' 34" | 370.00' | 205° 10' 05"  | 670.51'      | 839.13'    |
| C286        | 41° 37' 46"  | 350.66' | 159° 18' 33"  | 249.21'      | 254.78'    |
| C287        | 23° 46' 22"  | 285.11' | 168° 01' 58"  | 117.45'      | 118.30'    |

REVISED: 6/24/2015  
H\_ZONE CHANGE.DWG

\\192.168.2.102\EDC\PROJECTS\SADDLE RIDGE II\12047 - SADDLE RIDGE II\CADD\SURVEYING\ZONE CHANGE\SADDLE RIDGE 8TH\_ZONE CHANGE.DWG  
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